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ARGUMENT · PAST PERFORMANCE

Your CPARS Rebuttal Window Is 14 Calendar Days, Holidays Included

FAR 42.1503 gives a contractor 14 calendar days to answer a CPARS evaluation. In November that clock runs through two federal holidays.

BY MAXINE
READING TIME · 5 MIN
CPARS · PAST-PERFORMANCE · FAR-PART-42 · FEDERAL-CONTRACTING · SMALL-BUSINESS

A past performance evaluation in CPARS is the only document about your company that a future source selection board is certain to read, and the regulation gives you fourteen calendar days to put your side of it on the record. Most small contractors spend those days deciding whether a Satisfactory is worth arguing with, and by the time they decide, the evaluation has already gone out without them.

The fiscal year closed on September 30. FAR 42.1502(a) requires an evaluation "at least annually and at the time the work under a contract or order is completed," so every period of performance that ended with the year is owed one. The rule sets no date by which the government must write it. It sets a firm one for your answer, and in November that answer competes with Veterans Day on the 11th and Thanksgiving on the 26th, both of which count.

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CPARS

Silence is a decision, and the rule records it

Read FAR 42.1503(d) and (f) together and the sequence is plain. You receive notice that an evaluation is available. You have "up to 14 calendar days from the date of notification" to "submit comments, rebutting statements, or additional information." Then, "not later than 14 days after the date on which the contractor is notified," the evaluation becomes available to source selection officials, with whatever you submitted attached and a flag showing whether agency review is still pending.

Nothing in that sequence waits for you. If you comment on day twenty, the government "shall update CPARS" with your comment, but for the days in between, a contracting officer anywhere in the government can read the assessing official's narrative alone. FAR 42.1503(g) then has agencies use that record for three years after performance ends. A response you meant to write is, for source selection purposes, a response you declined to write.

That is the argument for answering every evaluation, including the good ones. A one-paragraph comment on a Very Good that names the specific delivery, the avoided cost or the schedule recovery puts facts in the file that the next evaluator can quote. The assessing official writes from what the office remembers and kept; you can write from the contract file.

14
CALENDAR DAYS A CONTRACTOR HAS TO COMMENT ON, REBUT OR ADD TO A PAST PERFORMANCE EVALUATION, FAR 42.1503(D)

14
DAYS AFTER NOTICE BEFORE THE EVALUATION REACHES SOURCE SELECTION OFFICIALS, COMMENTED ON OR NOT, FAR 42.1503(F)

3 yrs
HOW LONG AGENCIES USE A CPARS EVALUATION AFTER PERFORMANCE ENDS, SIX FOR CONSTRUCTION AND ARCHITECT-ENGINEER WORK, FAR 42.1503(G)

An evaluation you did not answer is not neutral. For three years it is the government's account, with your silence attached.

What a rebuttal can actually move

The rating scale in FAR 42.1503 is less discretionary than it looks, and its own definitions are the strongest material a contractor has. Each element is rated Exceptional, Very Good, Satisfactory, Marginal or Unsatisfactory, and each rating carries a test. A Marginal "should be supported by referencing the management tool that notified the contractor of the contractual deficiency," such as a deficiency report. If no such notice exists, say so, and ask which document the rating rests on.

The factors are fixed too. Every evaluation covers technical quality, schedule and timeliness, and management or business relations, plus small business subcontracting where a subcontracting plan applies. Cost control is "not applicable for firm-fixed-price or fixed-price with economic price adjustment arrangements." A firm-fixed-price contractor marked down on cost control has found an error, not a judgment call, and the comment should say exactly that.

Then there is the floor quoted in the margin: no rating below Satisfactory "solely for not performing beyond the requirements of the contract/order." Evaluators sometimes grade against what a program office hoped for rather than what the statement of work required. A rebuttal that quotes the requirement, the deliverable and the acceptance record turns that into a factual question.

Tone matters as much as content, because the comment travels with the evaluation. Write it for a stranger on a source selection board two years from now: dates, contract line items, correspondence references and no adjectives about the assessing official. Where you disagree, FAR 42.1503(d) requires agencies to "provide for review at a level above the contracting officer." Ask for that review in the comment itself. The regulation is candid that "the ultimate conclusion on the performance evaluation is a decision of the contracting agency," so the reviewing level may not change the rating. Your account and the review record are retained "as part of the evaluation" either way, and that is most of the value.

◆ THE FLOOR UNDER EVERY RATING

FAR 42.1503 says contractors "will not be evaluated with a rating lower than Satisfactory solely for not performing beyond the requirements of the contract/order." If a Marginal rests on work you were never asked to do, that sentence is your rebuttal.

Why a small firm cannot treat this as paperwork

A firm with hundreds of evaluations can absorb one Marginal into its average. A small contractor may hold three. When a board weighs relevance and recency, one of three is a third of your record, and it will be read closely. Issue 41 set out how hard it is for a new firm to build that record at all; the corollary is that the record you do build deserves a defense on the fourteen days the rule allows.

That defense starts before any notice arrives. Know who in your company receives CPARS notices, and name a second person for the weeks the first is out, because a holiday week does not stop the count. Keep a running performance file on every contract: acceptance emails, schedule changes the government caused, praise from the program office, and the date of every deficiency notice you received and how you closed it. A rebuttal assembled from that file takes an afternoon. One assembled from memory takes the full fourteen days and still reads like memory.

Then make a rule for yourself that mirrors the government's: every evaluation gets a written response, and the response goes in during the first week. A notice that arrives on Friday, November 20, runs out on Friday, December 4, and Thanksgiving week sits inside it: fourteen calendar days, but only nine federal business days.

If an evaluation lands that you believe misstates the record and you want a second reader before the window closes, talk to us. The clock is the regulation's, and it does not stop for anyone. ◆